# LEASE AGREEMENT

THIS OFFICE LEASE AGREEMENT ("Lease") is entered into this ______ day of January 2019 by and between TED GLASRUD ASSOCIATES FL LLC, a Florida corporation, located 759 SW Federal Hwy., Suite 217, Stuart, Florida, 34994 ("Landlord") and Clements' Pest Control Services, Inc., a Florida corporation whose principal place of business is 4036 43rd Ave, Vero Beach, FL 32960 ("Tenant"). Landlord hereby leases to Tenant and Tenant hereby leases from Landlord the Premises as set forth herein upon the following terms and conditions:

THE PARTIES MUTUALLY AGREE AS FOLLOWS:

1. LEASED PREMISES. Subject to the terms and conditions of this lease, Landlord leases to Tenant, and Tenant does hereby lease from Landlord, the "Premises" containing 2,600 Square Feet in Landlord's property known as TREASURE COAST COMMERCE CENTER, located at 7917 SW Jack James Drive, Suite 8 in the City of Stuart, Martin County, Florida ("Building"), and the land on which such property is located being described on Exhibits A & B attached hereto.

2. TERM. The Term of this Lease shall be for a period of two (2) years and zero (0) months, commencing on March 1, 2019, (the "Commencement Date") and terminating on July 31, 2019. If the Commencement Date is a date other than the first day of a Calendar Month, the Lease Term shall be extended by the number of days remaining in the Calendar Month in which the Commencement Date occurs. If the Premises are not ready for occupancy by Tenant on the Commencement Date, Landlord shall not be liable for any costs, claims, damages, or liabilities incurred by Tenant as a result thereof, and the Lease Term and the obligations of Tenant hereunder shall nonetheless commence and continue in full force and effect; provided, however, if the Premises are not ready for occupancy on the Commencement Date due to omission, delay, or default on the part of Landlord, the Lease Term shall not commence until the Premises are ready for occupancy by Tenant. In such event, the Commencement Date shall be deemed to be postponed to the date the Premises are ready for occupancy, whereupon the Lease Term shall commence.

3. GROSS RENT. During the term of this Lease, Tenant agrees to pay Landlord Gross Rent, according to the following (plus Florida Sales Tax):

| Date | Rent per Square Foot | Annual Rent | Monthly Rent |
|---|---|---|---|
| 3/1/19-2/28/21 | $10.25 | $26,650.00 | $2,220.83 |

(a) The Gross Rent and all other amounts due under this Lease shall be due and payable in advance in twelve (12) equal installments on the first (1st) day of each calendar month during the term of this Lease and any extensions or renewals thereof, and Tenant hereby agrees to pay Gross Rent and other amounts to Landlord monthly, in advance, and without demand. If the term of this Lease commences on a day other than the first (1st) day of a month, then the first installment of Gross Rent shall be prorated, based on thirty (30) days per month, and such installment so prorated shall be paid in advance.

(b) If Tenant fails to pay any regular monthly installment of rent by the tenth (10th) day of the month in which the installment is due, or any other amount due under this Lease, including but not limited to taxes or operating costs within ten (10) days after accrual thereof, there shall be added to such unpaid amount a late charge of five percent (5%) of the installment or amount due and owing under the terms of the Lease.

(c) The Gross Rent is subject to adjustment by reason of Gross Rent Adjustment pursuant to Paragraph 5.

Tenant shall have the one time option to renew this Lease Agreement for an additional three (3) years with ninety (90) days prior written notice to Landlord. The Gross Rent for the renewal period shall be negotiated between Landlord and Tenant at that time.
4. SECURITY DEPOSIT. Upon the execution of this Lease, Tenant shall deposit with Landlord a cash security deposit in the amount of $2,220.83, to guarantee the terms and conditions of the Lease. Upon the occurrence of any event of default by Tenant, Landlord may, at its sole option and without prejudice to any other remedy available to Landlord, use the Security Deposit to the extent necessary to make good any arrears of Rent and any other damage, injury, expense or liability caused to Tenant by such event of default. To the extent the Landlord shall use any portion of the Security Deposit, Tenant shall remit an amount necessary to restore the Security Deposit to its original balance to Landlord on the first day of month following notice of

the amount necessary to replenish the amount so used. Such Security Deposit shall be refunded to Tenant after the term of the Lease shall have ended and after all obligations of Tenant under the Lease have been fulfilled. Except as may be required by applicable law no interest shall be paid on any such Security Deposit and Landlord shall not be required to keep the security deposit separate from its general funds.

5. ADDITIONAL RENT. In addition to Gross Rent, Tenant hereby agrees to pay to Landlord, without any set off or deduction whatsoever, all other sums of money that become due and payable by Tenant to Landlord under this Lease, including, but not limited to, any Adjustment of Gross Rent pursuant to Paragraph 6, the amount of any ad valorem, transaction privilege, sales, or similar taxes incurred by Landlord on the rent transactions, including, but not limited to, all sales taxes levied, imposed or assessed by the United States of America, the State of Florida, or any political subdivision thereof, or any other taxing authority upon the Gross Rent, additional rent, and all sums payable hereunder.

6. GROSS RENTAL ADJUSTMENT. The amount of Gross Rent paid by Tenant shall be adjusted from time to time in accordance with the following provisions:

(a) Tenant hereby agrees to pay, to Landlord, Tenant's Proportionate Share of Operating Costs in excess of $3.25 per square foot. The estimated Operating Costs for the current calendar year is $ 3.25 per square foot. In each lease year, Tenant shall pay to Landlord, its proportion of the operating costs of the Building, the land on which the Building is located, and parking areas, facilities, structures and drives thereon, and any future additions or improvements thereto (collectively, the "Complex"). Prior to June 1 of each subsequent calendar year during the Lease Term, Landlord shall provide to Tenant an estimate of Operating Costs for that calendar year, but in no event shall Gross Rent be less than the amount specified in Paragraph 3.

(b) By June 1 of each calendar year during the Lease Term commencing as soon thereafter as possible, Landlord shall furnish to Tenant a statement of Landlord's Operating Costs for the previous calendar year or partial calendar year, if applicable. If the actual Operating Costs are greater than Landlord's estimate thereof, a lump sum payment equal to Tenant's Proportionate Share of the amount by which actual Operating Costs exceeded Landlord's estimate thereof (which payment shall be deemed a payment of rent hereunder for all purposes) will be made from Tenant to Landlord within thirty (30) days of the delivery of such statement. If the actual Operating Costs are less than Landlord's estimate thereof, Landlord shall promptly after delivery of such statement (but in no event within less than thirty (30) days) make a lump sum payment to Tenant (or at Landlord's option, Landlord may credit such lump sum amount against the rent installment due in the immediately succeeding month) equal to Tenant's Proportionate Share of the amount by which estimated Operating Costs exceeded the actual amount thereof. The effect of this reconciliation payment is that Tenant will pay during the Lease Term Tenant's Proportionate Share of Operating Costs, and no more.

7. OPERATING COSTS DEFINED. "Operating Costs" consist of all operating expenses of the Building and the Complex. All operating expenses shall be computed on the accrual basis in accordance with generally accepted accounting principles consistently applied. Operating expenses consist of all expenses, costs, and disbursements (but not specific costs especially billed to and paid by specific tenants) of every kind and nature that Landlord shall pay or become obligated to pay in connection with the ownership and operation of the Building and the Complex, including, but not limited to the following:

(a) Wages, salaries, and fees of all employees of Landlord and/or Landlord's agents (whether paid directly by Landlord itself or reimbursed by Landlord to such other party) engaged in the operation, maintenance, leasing, or security of the Complex and personnel who may provide traffic control relating to ingress and egress from the parking areas of the Complex to the surrounding public streets. All taxes, insurance, and benefits for employees providing these services are also included.

(b) Cost of all maintenance, repairs, and service agreements for the Common Areas of the Building and the Complex and the equipment therein including, but not limited to, alarm service, security service, traffic control, landscaping, gardening, facade maintenance, exterior and partition (demising) wall repairs, roof repairs, canal embankment and related maintenance, sidewalk repair and replacement, pothole repair and general resurfacing of parking areas, HVAC maintenance, service and repair, electrical and plumbing service equipment, garbage and rubbish removal, and janitorial service to the Common Areas of the Complex.

(c) Cost of all utilities for the Complex including, but not limited to, the cost of water sewer usage, power, heating, lighting, electricity, air-conditioning and ventilating for the Common Areas of the Complex.

(d) Cost of maintenance of all steam, water and other water retention and discharge piping, lakes, culverts, fountains, pumps, weirs, lift stations, catch basins and other like areas and facilities whether or not on or off-site.

(e) Cost of all insurance relating to the Complex, including, but not limited to, the cost of fire and extended coverage insurance, rental loss or abatement insurance, casualty and liability insurance applicable to the Complex and Landlord's personal property used in connection therewith.

(f) All taxes, assessments, and other governmental charges, whether federal, state, county, or municipal (other than federal taxes on Landlord's net income and Landlord's franchise taxes), and whether they be by taxing districts or authorities presently taxing the Complex or by others, or its operation; and any costs or expenses related to or incurred by Landlord in protesting the amount of taxes levied on the Complex or its tenants, including but not limited to attorney fees, consultant fees and appraisal costs. It is agreed that Tenant will be responsible for ad valorem taxes on its personal property and on the value of leasehold improvements.

(g) Landlord's central accounting costs applicable to the Complex.

(h) Cost of an office in the building maintained for management of the Complex.

Landlord and Tenant agree that the foregoing enumeration of specific types of costs and expenses is intended as illustrative only and shall not be construed so as to limit the inclusion of any types of costs or expenses otherwise intended to be included within the term Operating Costs but not set forth above or to obligate Landlord to provide any services contemplated thereby. If capital improvements become necessary due to casualty damage, ordinary wear and tear, compliance with any governmental law, ordinance or requirement or for any other reason, the cost of such capital improvements shall be amortized over period of time designated by Landlord in its reasonable discretion as a component of Operating Costs.

8. UTILITIES AND JANITORIAL. In addition to the payment of Rent, Tenant shall pay for all utilities of whatever kind or sort, used, installed or consumed in or upon the Premises including but not limited to electricity which shall be separately metered to Tenant and janitorial service to the Premises. Notwithstanding, Landlord reserves the right to designate specific utility providers to be used by Tenant. Landlord may, at its sole option choose to provide and sell utility services to Tenant. Tenant shall pay Landlord for said utilities at rates authorized by the appropriate governmental or public agencies.

9. USE. The Premises are to be used and occupied by Tenant solely for __ for retail automobile sales, inside display only and for no other purpose or use without the prior written consent of Landlord.

10. ACCEPTANCE OF PREMISES AND BUILDING BY TENANT. The taking of possession of the Premises by Tenant shall be conclusive evidence of the following:

(a) Tenant accepts the Premises as suitable for the purposes for which the same are leased;

(b) Tenant accepts the Building and each and every part and appurtenance thereof as being in a good and satisfactory condition.

11. USE OF COMMON AREAS. Tenant shall have the nonexclusive use, in common with others entitled to use the same, of the common areas of the Building and the Complex. "Common Areas" shall include, without limitation, parking areas, access facilities, loading docks, walkways, stairways, elevators, hallways, lobbies, and public restrooms if any are provided by Landlord.

12. SERVICES TO BE FURNISHED BY LANDLORD. During Tenant's occupancy of the Premises, Landlord shall furnish, as part of the Operating Costs of the Complex, the following services:

(a) Routine maintenance and electric lighting service for all public areas and special service areas of the Building and the Complex in the manner and to the extent deemed by Landlord to be standard.

(b) Security to the Building or Complex, as Landlord deems necessary during the weekends and after normal business hours during the week. Landlord shall not be liable for losses or injuries due to theft or burglary or for losses or damages or injuries in respect of any crime committed on or adjacent to any portion of the Premises or any other portion of the Complex.

Landlord shall be deemed to have observed and performed the terms and conditions to be performed by Landlord under this Lease, including those relating to the provisions of utilities and services, if Landlord acts in accordance with a directive, policy or request of a governmental or quasi-governmental authority servicing the public interest in the fields of energy, conservation or security.

Any cessation, malfunction, fluctuation, variation, or interruption of any services or utilities which are provided by Landlord, or any breakdown or malfunction of equipment in the Complex resulting from causes beyond the reasonable control of Landlord shall not render Landlord liable in any respect for damages, direct or consequential, to either persons or property, nor be construed as an eviction of Tenant, nor work an abatement of rent, nor relieve Tenant from the obligation to fulfill any covenant or agreement hereof. Should any of Tenant's office equipment or machinery breakdown, be damaged, or for any cause cease to function properly as a result of the cessation, malfunction, fluctuation, variation, interruption, or breakdown of services or equipment in the Complex, Tenant shall have no claim for rebate of rent or damages.

13. MAINTENANCE AND REPAIRS BY LANDLORD. Unless otherwise stipulated herein, Landlord shall not be required to make any improvements or repairs of any kind or character on the Premises during the Lease Term, including repairs to electrical, plumbing and HVAC, which shall maintained exclusively by Tenant along with any Leasehold Improvements, at Tenant's expense

Throughout the Term and any extensions thereof, Landlord shall maintain and repair those items for which Common Area Maintenance Charges is authorized and, except for maintenance and repair of those items that Tenant is to maintain and repair under any provisions of this Lease. Landlord shall maintain or shall cause the Complex to be maintained in good condition and, as reasonably necessary shall repair and maintain (a) the roof, exterior walls, Common Area windows and doors, foundation, and other structural elements of the Complex; (b) driveways, parking areas (including striping), sidewalks, curbs, signs, landscaping located on the Land, and any undeveloped areas of the Land. Landlord shall not be obligated to repair and maintain the windows, doors or interior or exterior glass associated with the Premises, any wall that is not part of a Common Area or the interior surface (that is, the surface of the wall that is exposed to the Premises) of any exterior wall or Common Area wall.

14. REPAIRS BY TENANT. Tenant shall keep and maintain, at Tenant's expense not to be reimbursed by Landlord in any way, the interior of the Premises including but not limited to all doors, plate glass and window glass, using labor and materials of the kind or quality equal to or better than the original work. In addition, Tenant shall repair or replace, at Tenant's cost and expense, any damage done to the Complex, or any part thereof including electrical, plumbing and HVAC systems which service the Leased Premises or Complex, caused by Tenant or Tenant's agents, employees, invitees, or visitors, and to restore the Complex to the same or as good a condition as it was prior to such damage. All repairs and replacements shall be affected in compliance with all building and fire codes and other applicable laws and regulations. If Tenant fails to make such repairs or replacements promptly, Landlord may, at its option, make the repairs or replacements, and Tenant shall pay the cost thereof to Landlord on demand. In no event shall Tenant be responsible for repairs or replacements necessitated by ordinary wear and tear, and damage by casualty or condemnation for which Tenant is specifically insured.

15. ALTERATIONS AND IMPROVEMENTS BY TENANT. Landlord shall not be required to make any alterations or improvements to the Complex or the Premises other than those improvements indicated in paragraph 62 herein and Exhibit D attached hereto. Tenant shall not make any changes, additions, and improvements to the Premises without the prior written consent of Landlord. All alterations consented to by Landlord and performed at the direction of Tenant shall be subject to requirements contained in this Lease and any other reasonable conditions imposed by Landlord, including, but not limited to, the personal guarantee of Tenant's obligation to pay for such improvements and the rights of other tenants of the Complex under leases then in effect. Tenant shall provide Landlord with all information requested by Landlord and necessary to complete a Notice of Commencement that evidences Tenant's liability for payment for all alterations, improvements and changes to the Premises as required by Florida Statutes.

Prior to the beginning of any construction of the Premises, Tenant expressly agrees to submit all plans, blueprints or other specifications, including but not limited to, interior decorating schemes, for the construction of improvements on the Premises to Landlord for approval. Landlord expressly reserves the right to review, modify or reject any proposed improvement or plan for construction.

Tenant expressly agrees and acknowledges that it will contract for labor and materials to build improvements in the Premises. Tenant expressly agrees that it will contract for labor and materials only with contractors, material providers, subcontractors and others performing work on or about the Premises or supplying material to the Premises who satisfy the following requirements: (1) Are licensed by the appropriate governmental agency(s); (2) Furnish Tenant with a Payment Bond pursuant to Florida Statutes 713.23 (1996); and (3) Are insured for liability. Tenant may satisfy these conditions by contracting with a general contractor who meets the above requirements. Prior to the commencement of any construction or work on the Premises, Tenant expressly agrees to provide Landlord with a copy of Tenant's contractor's Payment Bond(s) so that Landlord may file with the appropriate government agencies Landlord's Notice of Commencement with the Payment Bond attached thereto.

Tenant further agrees that it will pay for all labor and materials furnished or claimed to have been furnished to Tenant in connection with work of any type performed or claimed to have been performed on the Premises, at the direction or with the consent of Tenant. Upon payment for labor or material furnished, Tenant will require written lien waivers from the individuals or entities involved in the construction of improvements in the Premises. Upon written request from Landlord, Tenant shall supply copies of all lien waivers and liability waivers received from individuals or entities involved in the construction of improvements on the Leased Premises. Tenant shall hold harmless and indemnify Landlord from all claims related to or regarding labor and material furnished or claimed to have been furnished and shall hold harmless and indemnify Landlord from any claim or suit whatsoever related to construction of improvements on the Premises.

All alterations, improvements or additions on or upon the Premises made by Tenant or at its direction, shall become the property of Landlord at the expiration or termination of this Lease Agreement. Landlord reserves the express right to require Tenant to remove any improvements or additions made to the Premises and to require Tenant to repair and return the Premises to its original condition as defined as the condition of the Premises on the day prior to the execution of this Lease Agreement. If Tenant fails to return the Premises to its original condition, Landlord may collect from Tenant an amount equal to the costs necessary to return the Premises to its original condition.

All trade fixtures, movable equipment, or furniture owned by Tenant and installed on or in the Premises may be (or if requested by Landlord, shall be) removed by Tenant upon termination of this Lease, if Tenant is not in default under this Lease. Any such trade fixture not removed at or prior to the termination of this Lease shall become the property of Landlord. The term trade fixtures" does not include lighting fixtures, air conditioning equipment, electrical and plumbing installations, ceiling and ceiling support systems, storefronts, interior walls and partitions.

16. MECHANIC'S LIEN. Tenant shall not permit any mechanic's lien or liens to be placed upon the Premises, the Leasehold Improvements thereon or the Complex during the term hereof caused by or resulting from any work performed, materials furnished, or obligation incurred by or at the request of Tenant, and nothing contained in this Lease shall be deemed as constituting the consent or request of Landlord, express or implied, to any contractor, subcontractor, laborer, or material man for the performance of any labor or the furnishing of any materials for any specific improvement, alteration, or repair to the Premises, or any part thereof, nor as giving Tenant any authority to contract for or permit the rendering of any services or the furnishing of any materials that would give rise to the filing of any mechanic's or other liens against the interest of Landlord in the Premises. If a lien is filed upon the interest of Landlord or Tenant in the Premises, Tenant shall cause the same to be discharged of record within ten (10) days after filing of same. If Tenant shall fail to discharge such mechanic's lien within such period, then, in addition to any other right or remedy of Landlord, Landlord may discharge the same, either by paying the amount claimed to be due, or by procuring the discharge of such lien by deposit in court or bonding. Any amount paid by Landlord for any of the aforesaid purposes, or for the satisfaction of any other lien not caused by Landlord, with interest thereon at the rate hereinafter provided from the date of payment, shall be paid by Tenant to Landlord immediately on demand as rent. Nothing contained in this Lease shall be construed as constituting the consent or request of Landlord, express or implied, to or for the performance by any contractor, laborer, material man, or vendor of any labor or services or for the furnishing of any materials for any construction, alteration, addition, repair or demolition of or to the Premises or any part thereof. All material men, contractors, artisans, mechanics, laborers and any other persons now or hereafter furnishing any labor, services, materials, supplies or equipment to Tenant with respect to any portion of the Premises are hereby charged with notice that they must look exclusively to Tenant to obtain payment for same. Tenant and any subtenants shall have no power to do any act or make and contract which may create or be the foundation of any lien, mortgage, or other encumbrance upon the reversionary or other estate of Landlord, or any interest of Landlord in the Premises.

NOTICE IS HEREBY GIVEN THAT LANDLORD IS NOT AND SHALL NOT BE LIABLE FOR ANY LABOR, SERVICES OR MATERIALS FURNISHED OR TO BE FURNISHED TO TENANT OR TO ANYONE HOLDING THE PREMISES OR ANY PART THEREOF, AND THAT NO MECHANICS' OR OTHER LIENS FOR ANY SUCH LABOR, SERVICES OR MATERIALS SHALL ATTACH TO OR AFFECT THE INTEREST OF LANDLORD IN AND TO THE PREMISES EXCEPT AS OTHERWISE SET FORTH IN THIS LEASE.

Tenant shall post in at least three (3) conspicuous places on the Premises, a notice as described above.

17. GRAPHICS/SIGNAGE. Landlord shall provide signage for Tenant at Tenant's sole expense. All such letters and numerals shall be in the standard graphics for the Complex, and no others shall be used or permitted on the Premises.

18. KEYS AND LOCKS. Landlord shall furnish Tenant a Building Standard number of keys for each corridor entering the Premises. Landlord will furnish additional keys at a charge on receipt of an order signed by Tenant. All keys shall remain the property of the Landlord. No additional locks shall be allowed on any door of the Premises without Landlord's written permission. Upon termination of this Lease, Tenant shall surrender to Landlord all keys to the Premises, and give to Landlord the explanation of the combination of all locks for safes, safe cabinets, and vault doors, if any in the premises

19. CARE OF PREMISES. Tenant shall not commit or allow any waste or damage to be committed on any portion of the Premises, and at the termination of this Lease, by lapse of time or otherwise, to deliver up the Premises to Landlord in as good a condition as at the Commencement Date, ordinary wear and tear excepted. Upon any termination of this Lease, Landlord shall have the right to reenter and resume possession of the Premises.

20. HOLDING OVER. If after expiration or other termination of this Lease Tenant holds over without the prior written consent of Landlord, Tenant shall, throughout the entire holdover period, pay rent equal to the greater of twice the Gross Rent or the prevailing rent determined by Landlord, plus all other amounts that would otherwise have been payable hereunder had the Lease Term continued through the period of such holding over by Tenant; provided, however, that Landlord's acceptance of any such payment shall not constitute nor imply any consent by Landlord to any such holding over by Tenant. No holding over by Tenant after the expiration of the Lease Term shall be construed to extend the Lease Term; and in the event of any unauthorized holding over, Tenant shall indemnify, defend and hold Landlord harmless from and against all claims for damages (and reimburse Landlord upon demand for any sums paid in settlement of any such claims) by any other tenant or prospective tenant to whom Landlord may have leased all or any part of the Premises effective before or after the expiration of the Lease Term and by any broker claiming any commission or fee in respect to any such lease or offer of lease. Any holding over with the written consent of Landlord shall thereafter constitute a lease from month to month under the terms and provisions of this Lease, to the extent applicable to a tenancy from month to month, with a Gross Rent of one and one half (1 1/2) times that payable at the end of the Lease Term.

21. LEGAL USE AND VIOLATIONS OF INSURANCE. Tenant shall not occupy or use, or permit any portion of the Premises to be occupied or used, for any business or purpose that is unlawful, disreputable or extra-hazardous on account of fire, or permit anything to be done that could in any way increase the rate or result in the denial or reduction of fire, liability or any other insurance coverage on the Complex and/or its contents. If, by reason of Tenant's acts or conduct of business, there shall be an increase in the rate of insurance on the Building or the Building's contents, then Tenant shall pay such increase to Landlord immediately upon demand as additional rent.

22. LAWS AND REGULATIONS. Tenant shall comply with all laws, ordinances, rules and regulations of any state, federal, municipal, or other government or governmental agency having jurisdiction of the Premises that relate to the use, condition, or occupancy of the Premises and the conduct of Tenant's business thereon.

23. HAZARDOUS MATERIALS. Tenant shall not permit the use, generation, release, manufacture, refining, production, processing, storage, or disposal of any Hazardous Substances on, under, or about the Premises, or the transportation to or from the Premises of any Hazardous Substance, except as specifically set forth in this Lease.

For purposes of this Lease, "Hazardous Substance" means any substance designated pursuant to the Clean Water Act, Title 33 U.S.C. 1321; any substance designated a hazardous substance pursuant to 311 of the Federal Water Pollution Control Act, Title 33 U.S.C. 1317; defined as a hazardous waste pursuant to 1004 of the Federal Resource Conservation and Recovery Act Title 42 U.S.C. 6901; any element, compound, mixture, solution, or substance designated pursuant to the Comprehensive Environmental Response, Compensation and Liability Act, Title 42 U.S.C. 9602; any hazardous waste having the characteristics identified under or listed pursuant to the Solid Waste Disposal Act, Title 42 U.S.C. 1317; any hazardous air pollutant listed under Section 112 of the Clean Air Act, Title 42 U.S.C. 7412; any imminently hazardous chemical substance or mixture with respect to which the Administrator of the Environmental Protection Agency has taken action pursuant to Section 7 of the Toxic Substances Control Act, Title 15 U.S.C. 2606; and, any "Hazardous Substance," Hazardous Material," Hazardous Waste," Pollutant," or Contaminant," as defined by Florida Statutes, including but not limited, Florida Statutes Section 403 and Section 442. The term also includes, but is not limited to, polychlorinated biphenyl, asbestos, urea formaldehyde, petroleum or related substances.

Tenant shall, at Tenant's own expense, comply with all laws regulating the use, generation, storage, transportation, or disposal of Hazardous Substances ("Laws"), and promptly provide any and all information regarding the use, generation, storage, transportation, or disposal of Hazardous Substances that is required by Landlord.

Tenant shall, at Tenant's own expense, make all submissions to, provide all information required by, and comply with all requirements of all governmental authorities (the "Government") under the Laws.

Tenant shall indemnify, defend, and hold harmless the Landlord, the manager of the property, and their respective officers, directors, beneficiaries, shareholders, partners, agents, and employees from all fines, suits, procedures, claims, and actions of every kind, and all costs associated therewith (including attorneys' fee and consultant's fees) arising out of or in any way connected with any deposit, spill, discharge, or other release of Hazardous Substances that occurs during the term of this Lease, at or from the Premises, or which arises at any time from Tenant's use or occupancy of the Premises, or from Tenant's failure to provide all information, make all submissions, and take all steps required by the Government under the Laws and all other environmental laws.

In the event it is determined the Premises contains a Hazardous Substance that was either on the Premises prior to Tenant's occupancy thereof or was caused by some person or entity other than Tenant, its agents or employees, the obligations of Tenant under this paragraph shall not be enforced by Landlord.

Tenant's obligations and liabilities under this paragraph shall survive the expiration or other termination of this Lease.

24. ENTRY BY LANDLORD. Tenant shall permit Landlord or its agents or representatives to enter any part of the Premises at all reasonable hours and with reasonable notice (and in emergencies at all times) to inspect the same, or to show the Premises to prospective tenants, purchasers, mortgagees, or insurers, to clean or make repairs, alterations, or additions thereto, as Landlord may deem necessary or desirable. Tenant shall not be entitled to any abatement or reduction of rent by reason of such entry.

25. ASSIGNMENT AND SUBLETTING. Tenant shall not voluntarily assign or encumber its interest in this Lease or in the Premises, or sublease all or any part of the Premises, or allow any other person or entity (except Tenant's authorized representatives) to occupy or use any part or all of the Premises, without first obtaining Landlord's consent, which Landlord shall not unreasonably withhold, delay or condition. In the event Tenant should desire to assign this Lease or sublet the Leased Premises or any part thereof, Tenant shall give Landlord written notice of such desire at least sixty (60) days in advance of the date on which Tenant desires to make such assignment or sublease. Said written notice shall include detailed information regarding the proposed sub-tenant including financial information and references. Landlord shall respond to any Tenant request to assign, sublease or encumber within thirty (30) business days of written notice of Tenant's desire to enter into such assignment, sublease or encumbrance. At its sole option, Landlord may consent or Landlord may condition its consent on Tenant's agreement to an increase in the minimum rent payable to an amount which is not less than the current market rent for comparable premises. If Landlord elects to withhold its consent, Landlord shall specify in writing to Tenant the grounds upon which Landlord is withholding its consent. If Landlord fails to respond to Tenant within thirty (30) days of receipt to written notice, Landlord shall be deemed to have granted its consent to the proposed sublease, assignment or encumbrance. Any sublease, assignment or encumbrance without Landlord's written consent shall be, at Landlord's sole option, a default under this Lease. Notwithstanding the foregoing, Tenant shall have the right to assign this Lease and/or sublet the Premises without Landlord's consent to any corporation that is controlled directly or indirectly by Tenant. If Tenant is a corporation, and it is merged, purchased or otherwise transferred so that a new entity controls, directly or indirectly, Tenant, Landlord may at its sole option, by providing sixty (60) days notice to Tenant, terminate this Lease. No assignment or subletting by Tenant shall relieve Tenant of its obligations and liability under this Lease.

26. TRANSFERS BY LANDLORD. Landlord shall have the right to transfer and assign, in whole or in part, all its rights and obligations hereunder and in the Complex and other property referred to herein, and in such event and upon such transfer (any such transferee to have the benefit of, and be subject to, the rights and obligations of Landlord hereunder), Landlord shall be released from any further obligations hereunder, and Tenant agrees to look solely to such successor in interest of Landlord for the performance of such obligations.

27. ESTOPPEL CERTIFICATE. Tenant will, at any time and from time to time, within three (3) days from any written request by Landlord, execute, acknowledge, and deliver to Landlord a statement in writing executed by Tenant certifying to Landlord and/or any party designated by Landlord that Tenant is in possession of the Premises under the terms of this Lease, that this Lease is unmodified and in full effect (or, if there have been modifications, that this Lease is in full effect as modified, and setting forth such modifications), the dates to which the rent has been paid, that to the knowledge of Tenant no default exists hereunder or specifying each such default of which Tenant may have knowledge, and such other matters as may be reasonably requested by Landlord. Any prospective purchaser or mortgagee of the Complex may rely upon any such statement by Tenant.

28. EVENTS OF DEFAULT.

(a) The following events shall be events of default by Tenant under this Lease:

(i) Tenant fails or refuses to pay any installment of the rent hereby reserved or other sum of money payable hereunder or under any other agreement between Landlord and Tenant when due and such failure or refusal shall continue for ten (10) days after notice.

(ii) Tenant fails or refuses to comply with any term, provision, or covenant of this Lease, other than the payment of rent, or any term, provision, or covenant or any other agreement between Landlord and Tenant, and shall not cure such failure or refusal within ten (10) days after written notice thereof from Landlord to Tenant.

(iii) Tenant has three (3) or more consecutive defaults in any twelve (12) month period and/or five (5) or more defaults, whether or not consecutive within any twenty-four (24) month period, whether or not cured.

(iv) If Tenant or any guarantor of Tenant's obligations hereunder (hereinafter Guarantor") becomes insolvent, makes a transfer in fraud of creditors, makes a general assignment for the benefit of creditors, or admits in writing its inability to pay its debts as they become due.

(v) Tenant or Guarantor files a petition under any section or chapter of the Federal Bankruptcy Code, as amended from time to time, or under any similar law or statute of the United States or any state thereof, or an order for relief shall be entered against Tenant or any Guarantor in a bankruptcy or its reorganization proceedings under any present or future federal or state bankruptcy or similar law shall be filed in any court and not discharged or denied within twenty (20) days after its filing.

(vi) A receiver, trustee or custodian is appointed for all or substantially all of the assets of Tenant or of the Premises or any of Tenant's property located therein in any proceeding brought by Tenant, or any such receiver, trustee or custodian shall be appointed in any proceeding brought against Tenant and shall not be discharged within twenty (20) days after such appointment, or Tenant shall consent to or acquiesce in such appointment.

(vii) Tenant's leasehold interest hereunder is taken in execution or other process of law in any action against Tenant.

(viii) Tenant fails or refuses to move into or take possession of the Premises within fifteen (15) days after the Commencement Date.

(ix) Tenant ceases to conduct its business in the Premises or vacates any substantial portion of the Premises, whether or not rent continues to be paid.

(x) Tenant removes, attempts to remove or evidences an intention to remove Tenant's personal property from the Premises in a manner not consistent with ordinary and usual business practices without having paid to Landlord all rent due and owing at that time and all rent which may become due during the entire term of this Lease.

(b) If an Event of Default by Tenant shall have occurred and be continuing, Landlord may at its sole option by written notice to Tenant terminate this Lease. Neither the passage of time after the occurrence of the Event of Default nor exercise by Landlord of any other remedy with regard to such Event of Default shall limit Landlord's rights under this Section 28. In addition, if this Lease is not terminated, Landlord may recover from Tenant, upon demand, an amount equal to one (1) month's rent as a security deposit without any modification of Tenant's obligations under this lease and Landlord shall retain all remaining rights as provided by law for the enforcement hereof including an action or actions for specific performance.

(c) If an Event of Default shall have occurred and be continuing, whether or not Landlord elects to terminate this Lease, Landlord may enter upon and repossess the Premises (said repossession being hereinafter referred to as "Repossession") by force, summary proceedings, ejectment or otherwise, and may remove Tenant and all other persons and property therefrom.

(d) From time to time after Repossession of the Premises, whether or not this Lease has been terminated, Landlord may, but shall not be obligated to, attempt to relet the Premises for the account of Tenant if the Lease is not terminated, and in the name of Landlord if the Lease is so terminated, for such term or terms (which may be greater or less than the period which would otherwise have constituted the balance of the Term) and for such terms (which may include concessions or free rent) and for such uses as Landlord, in its uncontrolled discretion, may determine, and may collect and receive the rent therefor. Nevertheless, Landlord shall not in any way be obligated to give re-letting of the

Leased Premises priority over the leasing of any other Premises that Landlord has or will have available for lease. Any rent received from such re-letting shall be applied against Tenant's obligations as described hereafter, but Landlord shall not be responsible or liable for any failure to collect any rent due upon any such reletting.

(e) No Termination of this Lease pursuant to section 28(b) and no Repossession of the Premises pursuant to Section 28(c) or otherwise shall relieve Tenant of its liabilities and obligations under this Lease, all of which shall survive any such termination or Repossession.

(f) In the event of a termination of the Lease or Repossession without termination of the Lease, whether or not the Premises shall have been relet, Tenant shall pay to Landlord the Gross Rent, as well as any adjustments thereto, and other sums and charges to be paid by Tenant pursuant to Sections 5 and 6, up to the time of such termination. Thereafter Tenant, until the end of what would have been the Term in the absence of such termination or Repossession, shall pay to Landlord, as and for liquidated and agreed current damages for Tenant's default, the equivalent of the amount of the Gross Rent, as well as any adjustments thereto, and such other sums and charges which would be payable under this Lease pursuant to Sections 5 and 6, by Tenant if this Lease were still in effect, less the net proceeds, if any, of any reletting effected pursuant to the provisions of Section 28(d) after deducting all of Landlord's expenses in connection with such reletting, including, without limitation:

(i) all repossession costs;

(ii) brokerage and management commissions;

(iii) operating expenses;

(iv) legal expenses and costs;

(v) attorneys' fees;

(vi) alteration and tenant improvement costs, both associated with re-letting and those which are associated with Tenant's Lease and which have been amortized over the Term of the Lease but which have not yet been paid; and

(vii) expenses of preparation for such reletting.

(g) In the event of Repossession without termination of the Lease, Tenant shall pay such current damages to Landlord monthly on the days on which the Rent would have been payable under this Lease if this Lease were still in effect, and Landlord shall be entitled to recover the same from Tenant on each such day.

(h) At the sole discretion and option of Landlord, in the event of termination and Repossession, Tenant shall pay either:

(i) such current damages as described in section 28(f) on a monthly basis on the days on which the Rent would have been payable under this Lease if this Lease were still in effect, and Landlord shall be entitled to recover the same from Tenant on each such day; or

(ii) as and for liquidated and agreed final damages for Tenant's default, an amount equal to the then present value of the excess of the Gross Rent, as well as any adjustments thereto, and other sums or charges reserved under this Lease pursuant to Sections 5 and 6, from the day of such termination or Repossession for what would be the then unexpired term if the same had remained in effect, over the amount of rent Tenant demonstrates that Landlord could in all likelihood actually collect for the Premises for the same period, said present value to be arrived at on the basis of a discount rate of four percent (4%) per annum.

Nevertheless, in the event of such termination of the Lease, Landlord shall not be required to refund any excess rent it receives over and above that which Tenant is obligated to pay, to Tenant and any said overages shall become the property of Landlord.

(i) In addition to all other remedies of Landlord, Landlord shall be entitled to reimbursement upon demand of all reasonable attorneys' fees incurred by Landlord in connection with any Event of Default.

(j) In addition to those remedies hereunder, upon termination or Repossession, Landlord shall be entitled to offset against any rents, damages, or other sums of money owed by Tenant, any security deposit and/or any advance rent applicable to any time period after the occurrence of the default and any sums which would then or thereafter otherwise be due from Landlord to Tenant.

(k) Upon termination or Repossession, Landlord may alter locks and other security devices at the Premises.

(l) Landlord shall in no event be considered to be in default of Landlord's obligations hereunder until the expiration of a reasonable time after notice of default from Tenant.

(m) If Tenant commits an Event of Default (or if any default exists and Landlord has good cause for action prior to expiration of Tenant's cure periods), then Landlord may, but shall not be required to, make such payment or do such act, or correct any damage caused by such prohibited act and to enter the Premises as appropriate in connection therewith, and the amount of the expense thereof, if made or done so by Landlord, with interest thereon at the Interest Rate (as hereinafter defined) from the date paid by Landlord, shall be paid by Tenant to Landlord and shall constitute additional rent hereunder due and payable with the next monthly installment of rent; but the making of such payment or the doing of such act by Landlord shall not operate to cure such default or to estop the Landlord from the pursuit of any remedy of which Landlord would otherwise be entitled.

29. LIEN ON TENANT S PROPERTY. Tenant hereby grants to Landlord a lien and security interest on all property of Tenant now or hereafter placed in or upon the Premises and such property shall be and remain subject to such lien and security interest of Landlord for the payment of all rent and other sums due under this Lease. The provisions of this paragraph relating to such lien and security interest shall constitute a security agreement under the Uniform Commercial Code so that Landlord shall have and may enforce a security interest on all property of Tenant, including but not limited to, all fixtures, machinery, equipment, furnishings, and other articles of personal property. Tenant shall execute financing statements, continuation statements or other documentation as Landlord may request in order to perfect such security interests. Landlord may at its election, file this Lease as a financing statement. Landlord, as security party, shall be entitled to all of the rights and remedies afforded a secured party under the Uniform Commercial Code in addition to Landlord's lien rights as provided by law or by the terms of this Lease.

If Tenant default in its obligations under this Lease, Landlord shall be entitled to take immediate possession of all property in which Landlord has a security interest without notice, bond, prejudgment writs, writs of replevin, attachment writs and any other orders which may be issued by an appropriate court of law. Landlord shall be entitled to obtain break open judgments and orders authorizing the locking of the Premises in order to protect its security interest in the property.

30. PRIORITY LIENS. Tenant expressly agrees not to execute, deliver or enter into with any third party any financing or security agreement which may be considered a priority to any mortgage given by Landlord or its successors or assigns. In the event Tenant executes, delivers or enters into a financing or security agreement with a third party, Landlord may at its sole option, deem Tenant in default under this Lease and Landlord may pursue all remedies available to it under this Lease and in law.

31. SUBORDINATION, NON-DISTURBANCE & ATTORNMENT. This Lease is subject and subordinate to any mortgage or deed of trust that may now or hereafter encumber the Complex or any part thereof, and to all renewals, modifications, consolidations, replacements, and extensions thereof. This clause shall be self-operative and no further instrument of subordination need be required by any mortgagee or beneficiary; provided that any such mortgagee or beneficiary may elect to make this Lease superior to such mortgage or deed of trust by written instrument delivered to Tenant. In confirmation of such subordination and upon Landlord's request, Tenant shall, within five (5) days after Landlord's request, execute any certificate or instrument evidencing such subordination, which agreement shall contain a non-disturbance covenant consistent with that which is contained herein. Tenant hereby constitutes and appoints Landlord as Tenant's attorney-in-fact to execute any such certificate or instrument for and on behalf of Tenant. In the even of the enforcement by the mortgagee or beneficiary under any such mortgage or deed or trust or the remedies provided for by law or in such document, Tenant will, at the option of any person or entity succeeding to the interest of Landlord as a result of such enforcement, automatically become the Tenant of such successor in interest without change in the terms or other provisions of this Lease; provided, however, that such successor in interest shall not be bound by the following: (a) Any payment of rent or additional rent for more than one (1) month in advance, except advance rental payments expressly provided for in this Lease; (b) Any modification of this Lease made without the written consent of such mortgagee or beneficiary or such successor in interest; (c) Liable for any act or omission of Landlord; or (d) Subject to any offset or defense arising prior to the date such successor in interest acquired title to the Complex. Upon request by

any mortgagee or beneficiary, Tenant shall execute and deliver an instrument or instruments confirming the attornment provided for herein.

In accordance with, and subject to the provisions above, if the interests of Landlord shall be transferred to and owned by a Lender by reason of foreclosure or other proceedings brought by it in lieu of or pursuant to a foreclosure, or by any other manner, and the Lender succeeds to the interest of the Landlord under the Lease, and provided that Tenant is not in default (beyond any period given Tenant to cure such default) in the payment of rent or additional rent or in the performance of any of the terms, covenants or conditions of the Lease on Tenant's part to be performed, Tenant's possession of the Premises and Tenant's rights and privileges under the Lease, or any extensions or renewals thereof which may be effected in accordance with any renewal rights therefor in the Lease, shall not be diminished or interfered with by Lender, and Tenant's occupancy of the Premises shall not be disturbed by Lender for any reason whatsoever during the term of the Lease or any such extensions or renewals thereof.

32. ATTORNEYS' FEES. If Tenant defaults in the performance of any terms, covenants, agreements, or conditions contained in this Lease and Landlord places the enforcement of this Lease or the collection of any rent due or to become due hereunder, or recovery of the possession of the Premises in the hands of any attorney, or files suit upon the same, Tenant agrees to pay Landlord's reasonable attorneys' fees of not less than ten percent (10%) of the amount due to Landlord. In addition, if Tenant requests any consent or other action on the part of Landlord, in connection with which Landlord deems it necessary for any documents to be prepared or reviewed by its counsel, Tenant shall pay all reasonable attorneys' fees and expenses incurred by Landlord in such connection.

33. NO IMPLIED WAIVER. The failure of Landlord or Tenant to insist at any time upon the strict performance of any covenant or agreement or to exercise any option, right, power, or remedy contained in this Lease shall not be construed as a waiver or a relinquishment thereof for the future. The waiver of or redress for any violation of any term, covenant, agreement, or condition contained in this Lease shall not prevent a subsequent act, which would have originally constituted a violation, from having all the force and effect of an original violation. No express waiver shall affect any condition other than the one specified in such waiver and that one only for the time and in the manner specifically stated. A receipt by Landlord of any rent with knowledge of the breach of any covenant or agreement contained in this Lease shall not be deemed a waiver of such breach. No payment by Tenant or receipt by Landlord of a lesser amount than the monthly installment of rent due under this Lease shall be deemed to be other than on the account of the earliest rent due hereunder, nor shall any endorsement or statement on any check or any letter accompanying any check or payment as rent be deemed an accord and satisfaction, and Landlord may accept such check or payment without prejudice to Landlord's right to recover the balance of such rent or pursue any other remedy in this Lease provided. No waiver by Landlord or Tenant of any provision of this Lease shall be deemed to have been made unless expressed in writing and signed by the waiving party.

34. CASUALTY INSURANCE. Landlord shall maintain fire and extended coverage insurance (excluding hurricane and storm related casualties) on the Complex, including additions and improvements by Tenant. Such insurance shall be maintained with an insurance company authorized to do business in the State in which the Building is located, in amounts and with deductibles desired by Landlord at the expense of Landlord (as a part of the Operating Costs), and payments for losses thereunder shall be made solely to Landlord. Tenant shall maintain at its expense, fire and extended coverage insurance on all of its personal property, including removable trade fixtures, located in the Premises and on all additions and improvements made by Tenant and not required to be insured by Landlord above. Tenant shall also maintain business interruption insurance covering the Premises. If the annual premiums to be paid by Landlord shall exceed the standard rates because Tenant's operations, contents of the Premises, or improvements with respect to the Premises beyond Building standard result in extra-hazardous exposure, Tenant shall pay the excess amount of the premium upon request therefor by Landlord.

35. LIABILITY INSURANCE. Tenant shall, at its expense, maintain a policy or policies of comprehensive general liability insurance, with coverages acceptable to Landlord, with the premiums thereon fully paid on or before the due date, issued by and binding upon an insurance company with an A.M. Best Rating of at least A-XII and acceptable to Landlord, such insurance to afford minimum protection in limits of not less than $1,000,000.00 Combined Single Limits of coverage for Personal Injury and Property Damage and $1,000,000.00 Annual Aggregate. At least fifteen (15) days prior to Tenant's occupancy of the Leased Premises, Tenant shall deliver to Landlord a copy of all policy provisions intended to be included in the coverage to be provided by Tenant, and a valid certificate of insurance issued to Landlord, effective as of the dates applicable under the terms of this Lease, which certificate of insurance shall include, without limitation: (a) Provisions requiring notice by the insurer to Landlord at least thirty (30) days in advance of any contemplated, intended or effective cancellation, nonrenewal, or material change or modification of coverage provisions or limits; and (b) A Waiver of Subrogation in favor of Landlord and agents, employees, servants, officers, directors, contractors, and subcontractors of Landlord, with respect to the insurance coverage and claims of Tenant. Tenant's policy shall name Landlord as an additional insured.

If Tenant fails to deliver to Landlord a valid certificate of insurance as required, Landlord shall be entitled to an immediate judicial injunction prohibiting Tenant from taking possession of the Premises or conducting business on the Premises. If Tenant is prohibited from taking possession of the Premises, Tenant agrees pay all rent due and owing to Landlord under this Lease in a timely manner.

36. INDEMNITY. Landlord shall not be liable to Tenant or to its agents, servants, employees, customers, or invitees, for any claims, causes of action, losses, damages, expenses, court costs or attorneys' fees arising from any damage to person or property caused by, arising out of or related to any act, omission, or neglect of Landlord or Tenant, its agents, servants, employees, customers, or invitees, or any breach of any covenant under this Lease. Tenant expressly agrees to indemnify and hold harmless Landlord from all liability and from all claims for any such damage. The indemnity set forth in this Section shall survive the termination of this Lease.

37. WAIVER OF SUBROGATION RIGHTS. Anything in this Lease to the contrary notwithstanding, Landlord and Tenant each hereby waives all rights of recovery, claim, action, or cause of action, against the other, its agents, officers, or employees, for any loss or damage that may occur to the Premises, any Leasehold Improvements, or the Complex of which the Premises are a part, by reason of fire, the elements, or any other cause which is insured against under the terms of standard fire and extended coverage insurance policies referred to in Paragraph 33 hereof or is otherwise insured against under an insurance policy maintained by the party suffering such loss or damage, regardless of cause or origin, including any negligence of the other party hereto and/or its agents, officers, or employees, and each party covenants that no insurer shall hold any right of subrogation against such other party. Each party hereto agrees to give immediately to any insurer that has issued to it policies of fire and extended coverage insurance written notice of the mutual waiver contained in this provision and to have such policies endorsed, if necessary, to prevent the invalidation of insurance coverage by reason of such mutual waiver.

38. CASUALTY DAMAGE. If fire or other casualty shall damage the Premises or any part thereof, Tenant shall give prompt written notice thereof to Landlord. If the Complex shall be so damaged by fire or other casualty that substantial alteration or reconstruction of the complex shall, in Landlord's sole opinion, be required (whether or not the Premises shall have been damaged by such fire or other casualty), or if any mortgagee or beneficiary under a mortgage or deed of trust covering the Complex should require that the insurance proceeds payable as a result of said fire or other casualty be used to retire the mortgage debt, Landlord may, at its option, terminate this Lease and the term and estate hereby granted by notifying Tenant in writing of such termination within sixty (60) days after the date such insurance proceeds are applied to such mortgage debt, in which event the Net Rent hereunder shall be abated as of the date of such damage. If Landlord does not thus elect to terminate this Lease, Landlord shall within one hundred eighty (180) days after the date of such damage commence to repair and restore the Complex and shall proceed with reasonable diligence to restore the Complex (except that Landlord shall not be responsible for delays outside its control) to substantially the same condition in which it was immediately prior to the happening of the casualty, except that Landlord shall not be required to rebuild, repair, or replace any part of Tenant's furniture or furnishings or fixture and equipment removable by Tenant under the provisions of this Lease, but such work shall not exceed the scope of the work done by Landlord in originally constructing the Complex and installing Building standard items in the Premises, nor shall Landlord in any event be required to spend for such work an amount in excess of the insurance proceeds actually received by Landlord as a result of the fire or other casualty. Tenant agrees that promptly after completion of such work by Landlord, Tenant will proceed with reasonable diligence and at Tenant's sole cost and expense to restore, repair and replace alterations, additions, improvements, fixtures and equipment installed by Tenant. Landlord shall not be liable for any inconvenience or annoyance to Tenant or injury to the business of Tenant resulting in any way from such damage or the repair thereof, except that, subject to the provisions of the next sentence, Landlord shall allow Tenant a fair diminution of rent during the time and to the extent the Premises are unfit for occupancy. If the Premises or any other portion of the Complex be damaged by fire or other casualty resulting from the fault or negligence of Tenant or any of Tenant's agents, employees, or invitees, the rent hereunder shall not be diminished during the repair of such damage, and Tenant shall be liable to Landlord for the cost and expense of the repair and restoration of the Complex caused thereby to the extent such cost and expense is not covered by insurance proceeds. Any insurance which may be carried by Landlord or Tenant against loss or damage to the Complex or to the Premises shall be for the sole benefit of the party carrying such insurance and shall be under its sole control. Tenant shall use proceeds from insurance carried by Tenant to repair and restore Tenant's property.

39. CONDEMNATION. If the Premises shall be taken or condemned for public purpose to such extent as to render the Premises untenantable, this Lease shall, at the option of either party, cease and terminate as of the date of such taking or condemnation. Either party may exercise such option to terminate by written notice to the other party within fifteen (15) days after such taking or condemnation. All proceeds from any taking or condemnation of the Premises shall belong to and be paid to Landlord. Upon termination pursuant to this Section, Tenant shall immediately vacate the Premises.

40. DAMAGES FROM CERTAIN CAUSES/FORCE MAJEURE. Whenever a period of time is herein prescribed for the taking of any action by Landlord, Landlord shall not be liable to Tenant for any delay or for any loss or damage to any property or person occasioned by theft, fire, act of God, public enemy, injunction, riot, strike, insurrection, war, court order, requisition, or order of government body or authority, or neglect of Tenant or any of Tenant's employees or agents, or any other cause whatsoever beyond the control of Landlord, or for any damage or inconvenience which may arise through repair or alteration of, or failure to repair, any part of the Complex or Premises necessitated by such causes.

41. NOTICE AND CURE. In the event of any act or omission by Landlord that would give Tenant the right to damages from Landlord or the right to termination of this Lease by reason of a constructive or actual eviction from all or part of the Premises or otherwise, Tenant shall not sue for such damages or exercise any such right to terminate until it shall have given written notice of such act or omission to Landlord and to the holder(s) of the indebtedness or other obligations secured by any mortgage or deed of trust affecting the Premises, and a reasonable period of time for remedying such act or omission shall have elapsed following the giving of such notice, during which time Landlord and such holder(s), or either of them, their agents or employees, shall be entitled to enter upon the Premises and do therein whatever may be necessary to remedy such act or omission. During the period after the giving of such notice and during the remedying of such act or omission, the Net Rent payable by Tenant for such period as provided in this Lease shall be abated and apportioned only to the extent that any part of the Premises shall be untenantable.

42. PERSONAL LIABILITY. The liability of Landlord, any agent of Landlord, or any of their respective officers, directors, shareholders, or employees to Tenant for or in respect of any default by Landlord under the terms of this Lease or in respect of any other claim or Cause of action shall be limited to the interest of Landlord in the Complex, and Tenant agrees to look solely to Landlord's interest in the Complex for the recovery and satisfaction of any judgment against Landlord, any agent of Landlord, or any of their respective officers, directors, shareholders, and employees.

43. NOTICE. Any notice, communication, request, reply or advice (hereinafter collectively called "notice") provided for in this Lease must be in writing, and shall, unless otherwise expressly provided in this Lease, be given or be served by depositing the same in the United States mail, postpaid and certified and addressed to the party to be notified, with return receipt requested, or by delivering the same in person to an officer of such party, or by consigning the same to a recognized overnight delivery service operating on a nationwide basis, addressed to the party to be notified. Notice deposited in the mail in the manner hereinabove described shall be effective, unless otherwise stated in this Lease, three (3) days after it is so deposited. Notice given in any other manner shall be effective upon delivery. A party hereto may change its address by providing fifteen (15) days written notice to the other party delivered in compliance with this paragraph. No such notice shall be effective until actually received by the other party and provided further that during the Lease Term any notice to Tenant shall be deemed duly given if delivered to Tenant at the Premises.

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| For Notice to Landlord:<br>Ted Glasrud Associates FL, LLC<br>759 S. Federal Hwy.<br>Suite 217<br>Stuart, FL 34994 | With Copy To:<br>Ted Glasrud Associates MN, LLC<br>1700 West Highway 36<br>Suite 650<br>Roseville, MN 55113 |
| For Notice to Tenant:<br>Clements' Pest Control, Inc.<br>4036 43rd Ave.<br>Vero Beach, FL 32960 | With Copy To: |

44. CAPTIONS. The captions and headings appearing in this Lease are solely for convenience and shall not be given any effect in construing this Lease.

45. ENTIRETY AND AMENDMENTS. This Lease embodies the entire contract between the parties hereto, relative to the subject matter hereof. Expect as otherwise herein provided, no variations, modifications, changes, or amendments hereof shall be binding upon any party hereto unless in writing, executed by a duly authorized officer or agent of the particular party. Landlord and Tenant have fully negotiated the provisions of this Lease and, notwithstanding any rule or principle of law or equity to the contrary, no provision of the Lease shall be construed in favor of or against either party by virtue of the authorship thereof.

46. SEVERABILITY. If any term or provision of this Lease shall be invalid or unenforceable to any extent, the remainder of this Lease shall not be affected thereby, and each term and provision of this Lease shall be valid and enforced to the fullest extent permitted by law.

47. SUCCESSORS AND ASSIGNS. All covenants and obligations contained within this Lease shall bind and inure to the benefit of Landlord, its successors and assigns, and shall be binding upon Tenant, its permitted successors and assign.

48. NUMBER AND GENDER OF WORDS. All personal pronouns used in this Lease shall include the other gender, whether used in the masculine, feminine, or neuter gender, and the singular shall include the plural whenever and as often as may be appropriate.

49. GOVERNING LAW. This Lease and the rights and obligations of the parties hereto shall be interpreted, construed, and enforced in accordance with the laws of the State of Florida.

50. INTEREST RATE. All past-due rents or other sums payable by Tenant hereunder, and any sums advanced by Landlord for Tenant's account pursuant to applicable provisions hereof, shall bear interest from the date due or advanced until paid at the maximum lawful rate in effect at the time such payment was due or sum was advanced, or if there is no ascertainable maximum lawful rate then in effect, at a rate of fifteen percent (15%) per annum.

51. RULES AND REGULATIONS. Tenant shall comply with the Rules and Regulations of Landlord stated in Exhibit C attached hereto, as well as all changes therein and additions that may from time to time be adopted by Landlord for the operation and protection of the Building and the protection and welfare of its tenants and invitees. Landlord expressly reserves the right at any time and from time to time to make such reasonable changes in and additions to such Rules and Regulations, provided, however, that same shall not become effective and a part of this Lease until a copy thereof shall have been delivered to Tenant. Any enforcement of the Rules and Regulations shall not be enforced more or less favorably for or against any tenant and such enforcement or any promulgated Rules and Regulations shall not unduly burden or restrict Tenant's quiet enjoyment occupancy of the Premises.

52. RESERVED RIGHTS. Without limiting in any way Landlord's right to promulgate rules and regulations, Landlord shall have the following rights, exercisable without notice and without liability to Tenant for damage or injury to property, persons or business and without effecting an eviction, constructive or actual, or disturbance of Tenant's use or possession or giving rise to any claim for set off or abatement of rent:

(a) To change the Complex's name, design or street address.

(b) To approve, restrict, install, affix, maintain, and remove any and all signs on the exterior and interior of the Complex.

(c) To designate and approve, prior to installation, all types of window shades, blinds, drapes, awnings, window ventilators, and other similar equipment and to control all internal lighting that may be visible from the exterior of the Complex.

(d) To retain at all times, and to use in appropriate instances, keys to all doors within and to the Premises.

(e) To decorate, make repairs and construct, alterations, additions, changes or improvements, whether structural or otherwise, in and about the Complex, or any part thereof, and for such purposes to enter upon the Premises and, during the continuance of any such work, to temporarily close doors, entryway, public space and corridors in the Building, to interrupt or temporarily suspend Building services and facilities and to change the arrangement and location of entrances or passageways, doors and doorways, corridors, elevators, stairs, toilets or other public parts of the building, all without abatement of rent or affecting any of Tenant's obligations hereunder, so long as the Premises are reasonably accessible.

(f) To have and retain a paramount title to the Premises free and clear of any act of Tenant purporting to burden or encumber them.

(g) To grant anyone the exclusive right to conduct any business or render any service in or to the Building, provided such exclusive right shall not operate to exclude Tenant from the use expressly permitted herein.

(h) To approve the weight, size and location of safes and other heavy equipment and articles in and about the Premises and the Complex, and to require all such items and furniture and similar items to be moved into and out of the Complex and the Premises only at such times and in such manner as Landlord shall direct in writing. Movements of Tenant's property into or out of the Complex and within the Complex are entirely at the risk and responsibility of Tenant, and Landlord reserves the right to require permits before allowing any such property to be moved in or out of the Complex.

(i) To have access for Landlord and other Tenants of the Complex to any mail chutes located on the Premises according to the rules of the United States Postal Service.

(j) To take all such reasonable measures as Landlord may deem advisable for the security of the Complex and its occupants, including without limitation, the closing of the Complex after normal business hours and on Saturdays, Sundays, and holidays; subject, however, to Tenant's right to admittance when the Complex is closed after normal business hours under such reasonable regulations as Landlord may prescribe form time to time which may include, by way of example but not of limitation, that persons entering or leaving the Complex, whether or not during normal business hours, identify themselves to a security officer by registration or otherwise and that such persons establish their right to enter or leave the Complex.

(k) To display a For Lease" sign or other like signage on or about the Complex at any time and within the Premises three (3) months prior to the termination date of this Lease. All signage to be placed within the Premises shall be placed upon the Premises as Landlord shall require.

53. BROKERS. Tenant represents and warrants that Tenant has had no dealing with any broker other than Jeremiah Baron & Company in connection with the negotiation or execution of this Lease, and Tenant agrees to indemnify Landlord and hold Landlord harmless from any and all costs, expenses or liability for commissions or other compensation claimed by any broker or agent other than the party named above with respect to this Lease.

54. TIME OF ESSENCE. Time is of the essence of this Lease and each and every provision of this Lease.

55. BEST EFFORTS. Whenever in this Lease, there is imposed upon Landlord the obligation to use Landlord's best efforts or reasonable efforts or diligence, Landlord will be required to exert such efforts or diligence only to the extent the same are economically feasible and will not impose upon Landlord extraordinary financial or other burdens.

56. NO RESERVATION. Submission by Landlord of this instrument to Tenant for examination or signature does not constitute a reservation of or option for lease. This Lease will be as effective as a lease or otherwise only upon execution and delivery by both Landlord and Tenant.

57. CONSENT. Whenever Landlord's consent is required under this Lease, Landlord may withhold such consent in its sole and absolute discretion.

58. LEGAL AUTHORITY. If Tenant is a corporation (including any form of professional association), then each individual executing or attesting this Lease on behalf of such corporation covenants, warrants, and represents that he/she is duly authorized to execute or attest and deliver this Lease on behalf of such corporation. If Tenant is a partnership (general or limited), then each individual executing this Lease on behalf of the partnership hereby covenants, warrants and represents that he/she is duly authorized to execute and deliver this Lease on behalf of the partnership in accordance with the partnership agreement, or an amendment thereto, now in effect.

59. RADON DISCLOSURE. Radon is a naturally occurring radioactive gas that, when it has accumulated in a building in sufficient quantities, may present health risks to persons who are exposed to it over time. Levels of radon that exceed Federal and State guidelines have been found in buildings in Florida. Additional information regarding radon and radon testing may be obtained from your county public health unit.

60. WAIVER OF JURY TRIAL. Landlord and Tenant hereby knowingly, voluntarily and intentionally waiver the right to a trial by jury in respect to any litigation based hereon, arising out of, under or in connection with this lease or any documents contemplated to be executed in connection herewith or any course of conduct, course of dealings, oral or written statements, or actions of either party arising out of or related in any manner with the premises, including without limitation, any action to

rescind or cancel this Lease or any claims or defenses asserting that this Lease was fraudulently induced or is otherwise void or voidable.

61. PEACEFUL ENJOYMENT. Tenant shall be entitled to hold and enjoy the Premises subject to the terms hereof, provided that Tenant timely pays the rent and other sums herein required to be paid by Tenant and timely performs all of Tenant's covenants and agreement contained herein.

62. SUBSTITUTE SPACE. Landlord reserves the right at any time prior to tender of possession of the Premises to Tenant or during the term of this Lease after the Commencement Date and upon sixty (60) days prior written notice ("Substitution Notice") to substitute comparable space ("Substitute Space") elsewhere within the Complex for the Premises. Landlord shall reimburse Tenant for all reasonable out of pocket expenses involved in Tenant's relocation to the Substitute Space.

63. PARKING AREA RESTRICTIONS. TENANT will use the parking spaces directly in front of TENANT'S premises. Any vehicle not driveable and which remains (i) in front of, behind, or around TENANT'S premises, or (ii) anywhere on the adjacent property owned by LANDLORD, for a period of five (5) days, will be considered "Junk" and LANDLORD will have the right to have such Junk vehicle or vehicles towed from the Premises and TENANT shall be responsible for all towing expenses. TENANT also will not use the outside of the Premises for storing auto parts, machinery, equipment, or anything other than TENANT'S vehicles. LANDLORD shall have the right to remove all of the above articles at the expense of TENANT.

64. EXHIBITS, RIDERS AND ADDENDA. Exhibits A, B, & C, and any other exhibits, riders and addenda attached hereto are incorporated herein by reference and made a part of this Lease for all purposes.

IN WITNESS WHEREOF, Landlord and Tenant have executed this Lease in multiple original counterparts as of the date and year first above written.

Landlord:
Ted Glasrud Associates FL, LLC
By: Glasrud Management, Inc. its manager

Witnesses:

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____________________________
Theodore G. Glasrud, President

Tenant:
Clements' Pest Control, Inc.

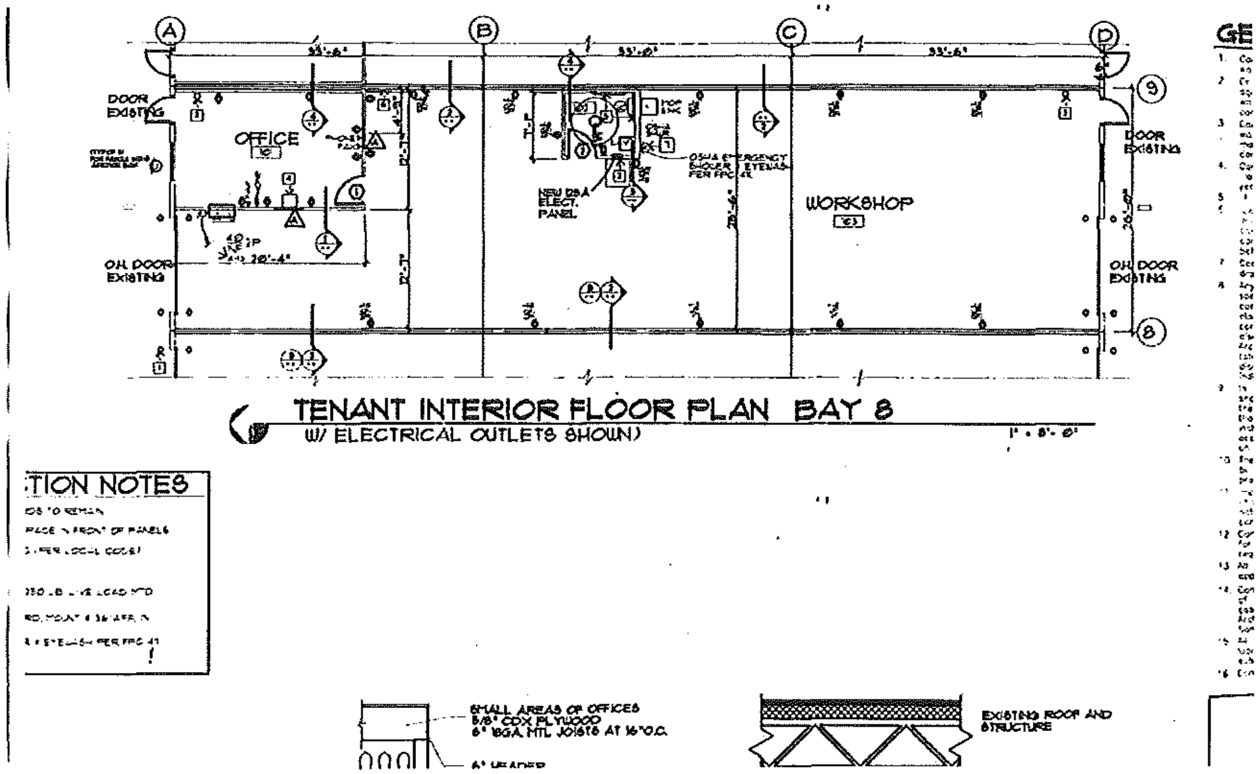
____________________________
Timothy T. Slade, President

**EXHIBIT A**
**TREASURE COAST COMMERCE CENTER**

**LEGAL DESCRIPTION**

Lots 1, 3, 4, 16, 17. 20 and 21, ELLIPSE, according to the map or plat thereof as recorded in Plat Book 11, Page(s) 84, Public Records of Martin County, Florida.

EXHIBIT B
FLOOR PLAN OF PREMISES



## EXHIBIT C
## TREASURE COAST COMMERCE CENTER RULES AND REGULATIONS OF LANDLORD

All tenants shall comply with the Rules and Regulations of Landlords stated herein as well as all changes therein and additions that may from time to time be adopted by Landlord for the operation and protection of the Building and the protection and welfare of its tenants and invitees. Landlord expressly reserves the right at any time and from time to time to make such reasonable changes in and additions to such Rules and Regulations, provided, however, that same shall not become effective until a copy thereof shall have been delivered to tenants. Any enforcement of the Rules and Regulations shall not be enforced more or less favorably for or against any tenant and such enforcement or any promulgated Rules and Regulations shall not unduly burden or restrict Tenant's quiet enjoyment occupancy of the Premises.

(a) Tenant shall conduct its business and control its agents, employees, invitees, and visitors in such manner as not to create any nuisance, or interfere with, annoy, or disturb any other tenant or Landlord in its operation of the Complex.

(b) No tenant may use loudspeakers, televisions, phonographs, radios or other like devices in a manner so as to be heard outside of the Premises or by adjoining tenants.

(c) No tenant may display merchandise or other signage on the exterior or in the interior portion of windows so as to be visible from outside of the Premises;

(d) All tenants are required to place garbage, refuse or rubbish in containers specified by Landlord;

(e) All tenants shall clean all outside areas immediately adjoining the Premises in a timely and reasonable manner.

(f) At no time shall any tenant conduct any auction, fire, bankruptcy, liquidation, or other like sale on or about the Premises and Complex.

(g) No tenant may solicit business or distribute any handbills or other advertising matter in the common areas of the Complex.

(h) All loading and unloading of goods, personal property and trade fixtures shall be done only at such times and in the areas and through such entrances as may be designated by Landlord. Trailers or trucks shall not be parked overnight in any area of the Complex, whether loaded or unloaded.

(i) All tenants shall keep the Premises clean, orderly, sanitary, and free from objectionable odors, insects, vermin and other pests.

(j) All tenants shall take actions to eliminate the use and possession of any illegal substance by its employees, agents or customers while said individuals are on the Complex.

(k) At Landlord's option, tenants will be required to park their automobiles and bicycles in only those areas of the Complex designated by Landlord.

(l) No tenant shall penetrate the roof of the Premises without Landlord's prior written consent. If any tenant does penetrate the roof, said tenant is responsible for the repair of roof leaks caused by such penetration even though tenant has obtained Landlord's written consent thereto.

(m) Tenant agrees to abide by all Treasure Coast Commerce Center Association rules and regulations as well as any Restrictive Covenants controlling the Premises. Said Association Rules and Regulations shall be provided to Tenant if requested by Tenant.